

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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AINSLEY JOSEPH,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER MUHAMET MJESHTRI, Tax No.
953119 and SERGEANT ANTHONY KENTON, Shield
No. 2662,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Kings
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 23, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER MUHAMET MJESHTRI, Tax No. 953119, 71st Precinct, 421 Empire
Blvd, Brooklyn, NY 11225
SERGEANT ANTHONY KENTON, Shield No. 2662, 71st Precinct, 421 Empire Blvd,
Brooklyn, NY 11225

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

AINSLEY JOSEPH,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER MUHAMET MJESHTRI, Tax No.
953119 and SERGEANT ANTHONY KENTON, Shield
No. 2662,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff, AINSLEY JOSEPH, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On August 26, 2016 at approximately 10:00 a.m., plaintiff Ainsley Joseph, while lawfully driving in the vicinity of President Street and Nostrand Avenue, Brooklyn, New York, was subject to an unlawful search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was denied the right to due process and a fair trial. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully searched, confined, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff AINSLEY JOSEPH is a resident of the state of New York.

3. POLICE OFFICER MUHAMET MJESHTRI, Tax No. 953119, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER MUHAMET MJESHTRI, Tax No. 953119, is and was at all times relevant herein, assigned to the 71st Precinct

5. POLICE OFFICER MUHAMET MJESHTRI, Tax No. 953119, is being sued in his individual and official capacity.

6. SERGEANT ANTHONY KENTON, Shield No. 2662, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT ANTHONY KENTON, Shield No. 2662, is and was at all times relevant herein, assigned to the 71st Precinct

8. SERGEANT ANTHONY KENTON, Shield No. 2662, is being sued in his individual and official capacity.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

12. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

13. On August 26, 2016, at approximately 10:00 a.m., plaintiff was lawfully driving a motor vehicle in the vicinity of President Street and Nostrand Avenue, Brooklyn, New York when the defendant police officers unlawfully stopped the vehicle and unlawfully handcuffed and falsely arrested plaintiff without reasonable suspicion or probable cause.

14. By way of background, on August 26, 2016, at approximately 10:00 a.m., plaintiff was lawfully pulling out of a parking spot at the aforementioned location when he was rear ended from behind by another motor vehicle.

15. The defendant police officers responded to the scene of the traffic accident and began to fill out an accident report.

16. Plaintiff presented the defendant police officers with a valid driver's license, valid insurance card, and valid registration.

17. At no point in time did plaintiff violate any section of the vehicle and traffic laws, nor did the defendant police officers have any reasonable suspicion or probable cause to believe plaintiff violated any section of the Vehicle and Traffic law.

18. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit or was committing a crime.

19. Nevertheless, plaintiff was unlawfully handcuffed and unlawfully arrested plaintiff by the defendant police officers without legal justification or probable cause.

20. Plaintiff was transported by the defendant police officers to the 71st Precinct against his will, where he was photographed, searched, fingerprinted and then placed in a holding cell by the defendants.

21. On August 26, 2016, at approximately 2:00 pm., plaintiff was given a Desk Appearance Ticket and was released from the 71st Precinct.

22. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

23. Specifically, the defendant police officers falsely stated to the District Attorney's Office that plaintiff's license was suspended, when in fact the defendant police officers knew that his license was not suspended.

24. In fact, plaintiff's DMV abstract indicates that his license was not suspended on the date of the incident.

25. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

26. Thereafter, plaintiff was forced to appear in Court on approximately 3 occasions before all charges were dismissed and sealed on January 20, 2017.

27. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest and imprisonment, and denial of plaintiff's right to due process and a fair trial.

28. The unlawful search, seizure, false arrest and imprisonment, denial of plaintiff's right to a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.

30. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

31. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

32. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.

33. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

34. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

35. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

36. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

37. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

40. Defendants lacked probable cause to search plaintiff.

41. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

44. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION.

Denial of Right to Fair Trial

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein

46. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

47. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the District Attorney's Office.

48. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the District Attorney's Office.

49. In withholding/creating false evidence against plaintiff Ainsley Joseph, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

50. As a result of the foregoing, plaintiff Ainsley Joseph, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Failure to Intervene

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

56. Defendants failed to intervene to prevent the unlawful conduct described herein.

57. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

62. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Ainsley Joseph demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 23, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER MUHAMET MJESHTRI, Tax No. 953119, 71st Precinct, 421 Empire Blvd, Brooklyn, NY 11225
SERGEANT ANTHONY KENTON, Shield No. 2662, 71st Precinct, 421 Empire Blvd, Brooklyn, NY 11225

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 23, 2019

/s/
STUART E. JACOBS